Subject: Re: SummerHill Balcony Ending this list: Summerhill Homeowners Balcony concerns
From: Barbara Hanson <knowles.hanson@gmail.com>
Date: 6/25/2024, 9:30 AM
To: LuAnn Tangen <luanntangen@yahoo.com>
CC: Jill J <jill@ninja.net>, People <peoplerealty@yahoo.com>, Jessica Slaughter <jessicaslaughter1111@gmail.com>, Arlys <arlys@arlys.net>, G <gerald.allan.jackson@gmail.com>, Ethanmrtn85@gmail.com, Marina Guevara <marina199286@gmail.com>, Michael Reich <mreich35@yahoo.com>, amel.biscevic@gmail.com, Terence and Lorna Sinclair-Wood <sinclairwood@hotmail.com>, Jaimie Wells <jwellskl@gmail.com>, aliceorosz77@gmail.com, olenarealty@yahoo.com, Terence So <gireeshwood@gmail.com>, Summerhill <summerhill@arlys.net>

As do I. Gerald was completely cut off, and no answers to his questions were forthcoming.

Barbara

On Tue, Jun 25, 2024 at 8:15 AM LuAnn Tangen <luanntangen@yahoo.com> wrote:

> Gerald I hope you keep pursuing your items that you brought up on the meeting yesterday.
> Sent from my iPhone
>
> > On Jun 24, 2024, at 6:48 PM, Jill J <jill@ninja.net> wrote:
> >
> > Thank you Gerald for speaking! Great job! Let's see if an assessment revision will be issued.
> >
> > On Mon, Jun 24, 2024, 6:19 PM LuAnn Tangen <luanntangen@yahoo.com> wrote:
> > > Gerald kudos to you on your questions on the meeting.
> > > Sent from my iPhone
> > >
> > > > On Jun 24, 2024, at 4:54 PM, People <peoplerealty@yahoo.com> wrote:
> > > >
> > > > I have my own property management company for almost 20 years, and cannot understand how a few people on the board decided to make very expensive project without the all owners of association.
> > > >
> > > > Yahoo Mail: Search, Organize, Conquer

On Mon, Jun 24, 2024 at 3:50 PM, Jill J <jill@ninja.net> wrote:

I was on the board when we had Rockford as our Management Company and enjoyed working with them but we had one person on the board who was against everything we did and gossiped about the rest of us. She rallied "her people" and got at least two of us off the board and then went and had Rockford fired and got a new management company. That management company then was acquired by First Service.l have over 30 years of property management accounting experience and have found board members don't want people on the board who understand property management. I have a passion for my career or l wouldn't be in it. It's frustrating when you understand property management but others don't want to listen and learn. For example when l asked why the balcony assessment was split evenly and not by square feet. I was told that's how the layers told us to calculate it and Pat the president or Lisa Murphy had no clue why. I told them that wasn't an answer and received anger back from them. I'm sorry l have no interest in being the head of this group. I will stand behind the group.

On Mon, Jun 24, 2024, 3:14 PM Jessica Slaughter <jessicaslaughter1111@gmail.com> wrote:

Thank you, Arlys, for your email. I unfortunately just simply don't have the bandwidth at the moment to lead the charge on this. I will say, though, that if we want to see change it will take the community of residents here to do it. It will require a good number of folks to be actively committed to ideation and ultimately speaking up, being assertive and taking action. At the end of the day, we are all in this together as we are all affected. Additionally, I will just say, the board has to understand that they need to work with residents and not bulldoze people into doing what they want or see fit.

Thanks much.

On Mon, Jun 24, 2024 at 2:47 PM Arlys <arlys@arlys.net> wrote:

Jessica, you've deftly touched on important points here.

Jessica is right, jumping into the conversation now feels very late. Her points are well-stated and I believe I feel a similar frustration and sense of being stuck with the current situation. I also realize that Gerard has been involved with this far longer than I have and has been writing to the board and his attorney, so I want to thank you both for all the time and effort you've put into writing detailed, fact-filled informational emails. Unfortunately, based on the lack of replies -- we don't seem to have enough homeowners interested (or able) to act as a group in hiring a real estate attorney. Therefore, I do not think we have any course of action available that will alter the current balcony contract.

That being said, this email group still exists and there are plenty of issues to be addressed if we just had someone who could *drive* the group, increase membership

numbers and help cultivate suggestions for actionable items geared towards issue resolution.

Airing concerns = good
Offering ideas on what to do = better
Offering ideas on *how* to get the change done = BEST

We just need a *driver*. Will one of you drive this group?
Thanks to all who have contributed their time and thoughtful comments.
Arlys

On Sun, Jun 23, 2024 at 7:29 PM Jessica Slaughter <jessicaslaughter1111@gmail.com> wrote:

> Gerald,
>
> Respectfully, why are you now just jumping into the conversation within this group email chain? It feels a little late. For two of the buildings, mine included, the balconies are already gone or will fully be removed in the next couple of days. Many of us have been asking questions and fighting for answers for months only to be met with push back and resistance from the board. I have been to the meetings and expressed my concerns, asked questions and pushed back myself. I have talked to two lawyers regarding the situation. It is a costly endeavor to even have them take a look at documents to ensure the board is doing what is right and equitable here. It would take a number of people to take legal action and split the legal fees so that it wasn't such a heavy financial burden. No guarantees it would amount to anything.
>
> What everyone is experiencing here is not uncommon when there is an association in the mix. The crazy stories of unforeseen expenses and lawsuits are abundant. It is ridiculous that so many are put in horrendous situations and told they have no power or say in anything.
>
> What I know is this, not many are happy about the balcony situation or the extreme financial burden it has unleashed. To say it is devastating is an understatement. Unfortunately, associations are a beast and it is no doubt a painful lesson learned. This particular association has done a subpar job of acquiring the necessary fees on a monthly basis from inception, this was something Lisa Murphy admitted to me. Poor planning, poor communication, and to be quite honest, not a lot of care or concern for the residents here. I don't subscribe to the notion that I should have expected to spend $24,000 because I purchased a condo in an older building nor do I ever need a man to mansplain anything to me, let alone, what an association means. Both of which happened not too long ago in a board meeting. Both these examples are big indicators that valid concerns were simply not going to be heard and that the board views their power in a very specific way.

I am one of 4 residents that have seen this project increase in cost, $20,000 to $24,297. Additionally, I have learned that I pay, in some cases, far above the monthly association fee than others. The reason for all of this equates to parking spots. So, to answer your question regarding percentages, Jill is correct, the parking spots are included and I happen to have two. I got zero answers as to why parking spots are included and how exactly everything is calculated as it is incredibly hard to see that some are paying $16,000 while I am paying $24,000. Furthermore, there are condos that are not only bigger in square footage but also have a much larger deck that are paying less.

I feel your pain, Gerald, many of us do. Unless people are willing to band together to explore legal action and potentially take legal action, I don't believe there is a leg to stand on here. The whole thing has been absolutely exhausting and unfortunately, as stated to me in one of the board meetings, you lose many of your rights regarding any decision making to the board.

While I will always fight for what I think is right and I don't back down easily or quietly, especially when it comes to my money, this whole situation has left me at dead end after dead end regarding any sort of resolution. From my perspective, Gerald, it is too late. The project has already started, balconies already removed. Unless there is legal action people are interested in taking to recoup money at this point. I am not opposed but there would need to be a group of at least 10 homeowners.

Kindly,

Jessica

On Sun, Jun 23, 2024 at 4:54 PM Jill J <jill@ninja.net> wrote:

> Gerald,
>
> I think they included each garage space square feet in the percentages and I'm not sure why. I don't get answers from the board or from First Service when I ask questions. It's been very frustrating working with First Service and the board on this issue and a water backup issue I had in my unit that wasn't my responsibly.
>
> Jill
>
> On Sun, Jun 23, 2024, 4:17 PM G <gerald.allan.jackson@gmail.com> wrote:
>
>> Dear Neighbors,
>>
>> Have any of you noticed discrepancies in the assessments you've received? Has anyone reviewed the governing documents, specifically Exhibit B to the

Second Amendment to the Declarations and Articles of Incorporation, also known as CC&Rs? All our governing documents are available in the portal. If you're unfamiliar with the online portal, you can request a copy at any time. The board is required to make these documents available to every member.

In these documents, you will find the Unit Allocation of Expense Liabilities and Votes. Each unit is assigned a percentage of the expenses and a corresponding percentage of votes (based on unit size, etc.). This is how your balcony expense should have been determined.

These are the governing documents, and the board is obligated to uphold them. As you can see below, our assessment does not match the CC&R (The Declaration). I urge you all to check your assessment to see if this discrepancy applies to your unit. There is a meeting tomorrow, and I strongly encourage you to attend if possible. Otherwise, please reach out to the board members.

For example [see below images] , an assessment of 1.325% is being charged, even though the correct amount per our governing document, which cannot be altered, is 1.243%.

Additionally, I have been in contact with Duke Johnson, the head of the Department of Inspection and Planning for the City of Bloomington. During several board meetings, I asked, "Why replace all 78 units' balconies when not all need replacement?" Pat told us, "The railings are out of code (that's true), and when you replace one, you must replace them all." This statement is simply not true. I confirmed with the City of Bloomington that you only need to bring the balcony up to code if you are replacing the entire balcony or if you remove and reinstall the railings. Standard repairs can be done without removing the railings, and you can also just replace the railings with ones that meet code. This is a much more reasonable and financially responsible approach—replace the balconies that need replacement and repair those that need it. They all do not need to be replaced.

I have this in writing from the City of Bloomington regarding the building code that Pat misrepresented, and I also have in writing from two contractors who assessed my balcony, both of whom saw no reason to replace the entire balcony. Nowhere in Encompass's Engineering Summary Report is there a suggestion to replace all 78 units' balconies. I urge you to call the City of Bloomington if you need to confirm what I have said about the building code. Bloomington Building and Inspection: 952-563-4519; Duke Johnson: 952-563-8959.

If your balcony hasn't been demolished yet, take plenty of photos of its condition, especially if you question its structural integrity. Read Encompass's Engineering Report, available in the portal. Have a licensed contractor inspect your balcony promptly. This is what Duke Johnson suggested I do, and he told me to bring it to the board's attention. I feel I have done this already, but I will

try again with supporting documents.

This issue essentially boils down to a $20k aesthetic upgrade. I understand that for some of you, this is not the case, and your balcony may indeed require replacement as outlined in the engineering report. However, the rest only require repairs, and a large portion of units require nothing. Paying 6.6% over 10 years, totaling closer to $29,000 for these balconies, is unreasonable and offers no return on investment. One contractor quoted $12k for the work.

Together, we can ensure we are treated fairly and not taken advantage of. Let's make sure our assessments are accurate and our expenses justified. I've been fighting this since last October when I tried to get a seat on the board. There were two open. We almost didn't have enough attendees to vote. If any of this has been upsetting or surprising to you, please do your part. If you had used the portal, this wouldn't have snuck up on you. Attend the meetings, use the portal, and read the public documents, not just the Rules and Regulations, but also the By-laws. Read meeting minutes and add your contact information so we can work together. USE the tools we are given. I can't stick my head in the sand and simply go along with everything that's said. I need to ask questions and confirm the information. That is all I can truly afford.

Sincerely,

-Gerald

<image.png>

<image.png>

On Sat, May 25, 2024 at 5:24 PM Arlys <arlys@arlys.net> wrote:

> Thank you, Jessica!
> I hope everyone will keep the conversation going.
> Arlys
>
> On Thu, May 23, 2024 at 10:24 PM Jessica Slaughter <jessicaslaughter1111@gmail.com> wrote:
>
>> I just wanted to jump in here and say a BIG thank you to Arlys for putting this together. I appreciate your time, energy and effort. Disbanding the email makes sense.
>>
>> Jessica
>>
>> On Thu, May 23, 2024 at 10:57 AM Arlys <arlys@arlys.net> wrote:
>>
>>> Good morning, everyone

By now, you've all received the letter from the attorney that works for First Residential.

First, I want to thank those of you that *have* engaged in the conversation and were able to attend the online meeting. The information that was shared was invaluable and the numerous issues that were raised truly deserve everyone's attention. I hope in the future someone will take on this responsibility and have the resources and ability to update each individual and address the concerns of the homeowners.

As of today, I am disbanding this email list for the following reasons:

- Lack of engagement
- No resources to contact non-resident homeowners
- I receive too many direct email, text and phone call requests for updates and don't have the bandwidth to carry on these separate conversations, with the expectation of translating the information to the group at a later date

Anyone who is interested in discussing the letter from the attorney may certainly *Reply All* to this email with your comments.
I simply won't be keeping the list nor accepting any further contacts at this time.
Thank you,
Arlys Alford

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You received this message because you are subscribed to the Google Groups "Summerhill" group.
To unsubscribe from this group and stop receiving emails from it, send an email to summerhill+unsubscribe@arlys.net.
To view this discussion on the web visit https://groups.google.com/a/arlys.net/d/msgid/summerhill/CAF%3Dydow13K7SgniGB6N3EJ%3DOsf-3UgUowG0EGM8k7%2B5P1_yoWQ%40mail.gmail.com.

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